WASHINGTON MHIKE
versus
THERESA TAPIWA NYAMADZAWO

HIGH COURT OF ZIMBABWE
MHURI J
HARARE;19 November 2025, 19, 20, 21 January and 12 May 2026

Matrimonial Trial

Mr *V N Mukumba with Mr P Makuwaza,* for the plaintiff
Mr *Mapuranga with Mr J Nemaisa,* for the defendant

MHURI J: The parties Washington (plaintiff) and Theresa (defendant) got married under The Marriages Act then [*Chapter 5:11*], now [*Chapter 5:17*] on 25 March 2013. The marriage was blessed with two children, Jeremy Lebohang born on 4 September 2013 and Gabriella Thandeka born on 31 May 2016. The children are still minors.

On 4 December 2024 plaintiff caused the issuance of matrimonial summons wherein he was claiming a decree of divorce, distribution of matrimonial property, custody of the minor children and maintenance for the minor children.

The matter proceeded in terms of the Rules of this Court SI 202/2021 up to Pretrial Conference.

The issues that were referred to trial for determination were:-

1. Whether or not house number 6141 Bloomingdale Mabelreign Harare constitutes matrimonial property.
2. Which assets constitute matrimonial property and what is the equitable manner of distribution thereto.
3. Who should be the custodian parent and what access rights the non-custodian parent is to be awarded.
4. What quantum of maintenance should be appropriate for each of the two minor children.

On the date of trial (19 November 2025) defendant indicated that she was no longer contesting plaintiff being awarded the two immovable properties in South Africa. The

Suzuki motor vehicle Reg KM 31 CWGP. She was no longer opposed to the decree of divorce being granted. Plaintiff on the other hand also agreed that the dining suite be awarded to defendant.

The only issues that were left for trial were:-

1. The Bloomingdale property. Whether it constitutes matrimonial property and to whom should it be granted.
2. Custody of the two minor children.
3. The quantum of maintenance for each of the two minor children.

To prove his claims, plaintiff led the following evidence, that he lives in Pretoria South Africa and is employed as the Sectional Head for the Material Engineering Division at Tshwane University of Technology Pretoria. He is also a Lecturer and Researcher at the same University.

He got married to the defendant in 2013, the marriage still subsists and they have two children namely Jeremy Lebohang Mhike born on 4 September 2013 and Gabriella Thandeka Mhike born on 31 May 2016. All the four of them have South African Permanent Resident Permits.

As regards his claims for a 50% share of House No 6114 Bloomingdale Mabelreign Harare (THE PROPERTY) Plaintiff testified that the property was financed through proceeds of the marriage which marriage he contributed to directly and indirectly. He and the defendant had agreed that the mortgage bond over the property would be serviced from defendant's income (salary) while he attended to other needs of the family. Further, he testified that it is just and equitable that the property be shared despite the fact that defendant had surrendered to him the properties in South Africa as the South Africa property is currently encumbered. He owes the Bank almost RI. 1 million and he has been paying the Bank by himself whereas the Bloomingdale property is fully paid up. Further, that he is heavily indebted due to the support he gave to the defendant and family.

He produced as exhibits:-

11 series The Deed of Transfer in the name of defendant in respect of the Bloomingdale Property.

12 series Letters from the University of Tshwane in respect of defendant's admission and confirmation of payment of fees.

13 Defendant's visa.

14 Remittances of money to defendant through Mukuru.

15 series Plaintiff's teaching and tutorship appointments and scholarship awards.

16 series Plaintiff's service contracts from Tshwane University.

17 series Plaintiff's Home loan statement, family car loan statement, FNB overdraft statement

18 series Family flight tickets for holidays

Under cross examination, plaintiff accepted that defendant owned the Bloomingdale property before they got married and that she obtained the Title on 16 September 2011. He accepted that from September 2011 to March 2013 when they got married, defendant was solely servicing the mortgage bond. He accepted that during the period when defendant was singly servicing the loan that translated to a % of the value of the property. He accepted that the loan was supposed to be repaid in full by the year 2036 but was repaid earlier in 2020.

He accepted that from 25 March 2013 (time of their marriage up to January 2018 when defendant joined him in South Africa) defendant was living in rented accommodation in Rusape and Karoi, and that she required support. He accepted that he did not directly service the defendant's mortgage bond stating that it was serviced from defendant's income (from her account). He accepted that between 25 March 2013 and 31 December 2013 he did not send defendant any money, though stating that the Mukuru remittances were just one means of sending her money as he came to Zimbabwe every month and brought the money. He accepted that apart from the once off flight tickets, he did not produce any evidence (exhibits) to prove the support he alleges he provided.

He accepted that after the birth of Jeremy, defendant's financial obligations increased. He accepted that for the whole year 2014, he sent defendant a total sum of US$590. He submitted that he did not tender in evidence the other means of support as this evidence was too much to put it on record. He accepted that in 2015 he only sent US$920 and in 2016 he sent nothing, though arguing that his obligation was to look after his family and not to send money. He accepted that the total amount he sent through Mukuru remittances for the period 25 March 2013 and 31 December 2017 when defendant resigned from her work was US$2019.

Plaintiff could not deny or accept that by 31 December 2017 when defendant resigned from her employment, she had serviced the bond to the tune of US$22508 through deductions from her account. He accepted that of the US$22508 he did not make any direct payment towards the servicing of the loan. He accepted that a further US$1424 was deducted from her account for 5 months when she was already in South Africa.

He also accepted that defendant's family members made payments into defendant's account which payments went towards repayment of the loan and the loan was paid up.

Plaintiff reiterated that his contributions towards the repayment of the loan was indirect as he covered all other family costs while in South Africa.

As regards the issue of custody, plaintiff testified that, they (plaintiff and defendant) sired two children namely Jeremy Lebohang Mhike born on 4 September 2013 and Gabriella Thandeka Mhike born 31 May 2016. He presently stays with the children in Pretoria South Africa. He employed a maid who looks after the children when he is at work. The children are enrolled at Deutsche Internationale Schule, Pretoria and he is the one responsible for their school fees, maintenance and all school related requirements. He also provides the children's health needs through medical aid (Discovery Medical Aid) since 2017 to date.

He currently has custody of the children. He obtained Permanent Residence Permits for the children and defendant.

He testified that defendant's Permit is subject to certain conditions and particularly that if divorce is granted, the Permit will lapse and she has to apply for another form of permit if she intends to remain in South Africa.

He testified that it is in the best interests of the children that he be granted custody of the children as he has lived with them since 2018, he has looked after them, provided for all their needs, he regards South Africa as their habitual residence, they go to an International School which exposes them to international education. They are well settled there, have a network of friends.

On the other hand, he testified that it is not in the best interests of the children that defendant be awarded their custody as, in November 2024 defendant with the assistance of her relatives removed the children from their current school during the term and relocated to Zimbabwe and enrolled them at a school without his knowledge and/or consent. He had to

obtain a court order for defendant to return the children to South Africa. Further, he testified that in June 2025 defendant left the Matrimonial home to some unknown destination and left the children in the care of an undocumented person from Lesotho. Defendant has not been contributing to primary or major expenses such as school fees, electricity, water bills or the helper's salary save for one or two occasions she bought groceries and clothing items for the children.

He testified that defendant has been exercising access rights without challenge. He would be comfortable with defendant accessing the children every alternate weekend and school holidays.

He tendered the following exhibits:-

2. FNB statement from 31-1-2020 showing school fees paid for the children.

3. Proof of payment for books and stationery and school trips.

4. series Invoices for Courtney House, Busy Bee Play Centre.

5. Certificate of Membership Discovery Medical Aid.

6. series Permanent Residence Permits.

7. series Receipt for playstation invoice for keyboard delivery, note for playstation.

8. series email from Deutsche Internationale Schule, letter from school, High Court Order HCHF 106/25.

9. Respondent's opposing affidavit in HCHF 106/250.

10. Letter from defendant's legal practitioners stating she will not be returning to South Africa for fear of her life.

Lastly, plaintiff testified that the equitable amount of maintenance to be paid by defendant in respect of the children is US$100.00 per child per month. This will assist with everything else that he is presently doing for the children. According to her affidavit in HCHF 106/25 she gets rental income, she gets income from buying and selling business and she also gets some salary from the community service she is doing.

Under cross-examination he disputed that defendant comes home every fortnight but once a month and that some of her clothes are at the house and she sleeps in the spare bedroom.

He accepted that the children are still minors who require not only motherly care but both parents' care. He stated that Gabriella has already started her menstrual cycle while under his

care. He indicated that he would have issues with the children being removed from their habitual residence, which is a secure home, has provision for play grounds, they have friends within the complex.

He maintained his position that Defendant has previously demonstrated her non-respect of his parental rights when she removed the children from South Africa to Zimbabwe thereby alienating them from him.

As regards Defendant's stay in South Africa after divorce his response was that Defendant is talking of her intentions which can come to fruition or not hence, he would not want to take chances with the children's lives especially after she indicated her unequivocal intention to relocate to Zimbabwe.

With this evidence, Plaintiff closed his case.

Defendant then opened her case by giving the following evidence, that she resides at Unit 101 Mt Grace Complex La montagen Pretoria and is currently performing community service as a Pharmacist with the Department of Health in Mpumalanga Province South Africa.

She explained community service as a prerequisite by the Department of Health in South Africa for her to start practicing as a Pharmacist and that it is a service for 12 months on a R 40 926 -00 monthly remuneration.

As regards the Bloomingdale property she testified that she does not agree with Plaintiff's claim for a 50% or any share of the property. She elaborated that she purchased the property before they got married in 2011. The property is registered in her name. She financed the purchase through a mortgage bond financed by her employer CBZ Bank. The loan was US$ 36 600 deposited into her CBZ account and monthly deductions were done from her salary.

She confirmed that they got married on 25 March 2013 and also testified that upon informing Plaintiff of the loan, his response was that he did not want to be involved in a purchase made before their marriage, hence he disasociated himself from the repayment.

She testified that she serviced the loan from her salary from September 2011 up to Dec 2017 when she resigned from CBZ. She testified further that when they got married Plaintiff was finishing his PHD studies and his only income she was aware of was the part-time lecturing he was doing at University of Pretoria, and he stated that the scholarship and bursaries awarded to him were solely to cover his academic studies and not to support family to which she agreed to

because the awards stipulated the same. She stated that the only financial support she got from him was through Mukuru remittances. She stated that the remittances were sporadic in that he did not constantly send money, he did not send groceries and if he came to Zimbabwe he would bring mainly clothing and if he would bring money it would be for his travel back.

She denied that they had agreed that rentals from her parent's Chitungwiza house would go towards the loan. She testified that after she resigned from her employment and relocated to South Africa her family members took over the loan repayment and fully paid it on 7 September 2020 so that the property is not repossessed and sold and that plaintiff did not chip in as he had dissociated himself from the beginning.

Defendant produced exhibits :-

a) Bank statement from page 78 to 277 showing loan deductions from her salary CBZ account No 10223016320018
b) Deed of Transfer in favour of Paul and Veronicah Nyamadzawo- page 75.
c) Loan Statement pages 278-283.

As regards custody of the children, Defendant's testimony was that she opposes Plaintiff's claim for sole custody, maintenance of US $100-00 per month per child and that she be granted access rights. Instead she seeks primary custody of the children and that Plaintiff be accorded access rights and pay US$ 350-00 per month per child. She confirmed the school that the children are enrolled at and that academically Gabriella has been performing well whereas Jeremy has been struggling due to the emotional stress as a result of the divorce. She was responsible for the children's day to day care since their birth until 2018 when she relocated to South Africa. She testified that currently she is working away from home in Mpumalanga Province but goes home for 2 weeks in a month and the time she is at work she talks to the children on a daily basis through the phone. When at home, she takes care of them and has been responsible for teaching Gabriella about all issues pertaining to sexual health. She helps them with homework and attends all teachers meetings, she takes them for their medical appointments. She explained why she would be away from home as the pharmacy programme she is doing requires that after completing the degree, she performs a 12 months internship and thereafter 12 months community service hence she was posted to a hospital which is not near her home and could not commute on a daily basis. She denied deserting the matrimonial home.

She testified that if granted custody of the children she will be able to find decent accommodation within the same locality and in the vicinity of their current school. A helper and her mother will assist her with the children when she is at work. As regards her Permanent Residence Permit, she testified that when the divorce is granted the Permit will be invalid and as a Health Professional soon to be registered in South Africa, she is eligible for a work visa. In the event of relocating to Zimbabwe, the children have accommodation since she owns the Bloomingdale house which has 4 bedrooms.

There are schools in the vicinity that offer both cambridge and local syllabus, she will be able to take medical aid for them. She testified that with the best interests of the children at heart, if she is able to stay and work in South Africa, her priority will be to maintain them at their current school, find accommodation within the vicinity of the school and home where the father is, so that they maintain contact with their father who shall have access for the first half of the holidays and two weekends in a month from Friday to Sunday during school days. She claims US$350-00 per month per child as a supplement to what she is earning to cover both school and any other expenses.

Under cross-examination she agreed that the children have established well in South Africa. She agreed that education and health are some of the key essential needs of the children and that when she relocated to South Africa it is Plaintiff who meets the educational needs of the children and also pays for the services rendered by the maid and also that Plaintiff has physical access with the children on a daily basis and manages the day to day affairs of the children.

She confirmed that at the end of the one year community service there will not be any other source of income. She however, stated that she will be assuming duty at the Pharmacy where she did her internship though she has not yet signed any contract with the Pharmacy.

She justified her claim for US$ 350-00 per month per child by stating that this will supplement what she is paying to cover the current expenses being paid by Plaintiff as fees, uniforms, transport, stationery, textbooks, food and clothing.

She agreed that Plaintiff was taking care of other family needs during the period when Defendant was servicing the loan.

With the evidence of the Defendant, Defendant closed her case.

In *casu,* parties are agreed that a decree of divorce be granted. The only two issues for determination, are the distribution of the Bloomingdale property and custody, maintenance of the children and access rights of the non custodian parent.

In determining the issue of the Bloomingdale property, the court is guided by the Matrimonial Causes Act [*Chapter 5:13*] and in particular section 7 there at which providers as follows;-

"Division of assets and maintenance orders

(1) Subject to this section, in granting a decree of divorce, judicial separation or nullity of marriage, or at any time thereafter, an appropriate court may make an order with regard to –

(a) the division, apportionment or distribution of the assets of the spouses, including an order that any asset be transferred from one spouse to the other;

(b) The payment of maintenance, whether by way of a lump sum or by way of periodical payments in favour of one or other of the spouses or of any child of the marriage.

(2) …….

(3) ……..

(4) In making an order in terms of subsection (1) an appropriate court shall have regard to all the circumstances of the case, including the following-

(a) the income earning capacity, assets and other financial resources which each spouse and child has or is likely to have in the foreseeable future;

(b)……

(c) the standard of living of the family, including the manner in which any child was being educated or trained or expected to be educated or trained

(d)…….

(e) the direct or indirect contribution made by each spouse to the family, including contributions made by looking after the home and caring for the family and other domestic duties.

(f)……..

(g)……"

The case of *Gonye* v *Gonye* 2009 (1) ZLR 232 clearly stipulates the position in as far as the assets of the spouses are concerned. At page 237, MALABA JA (as he then was) had this to say

> "It is important to note that a court has an extremely wide discretion to exercise regarding the granting of an order for the division, apportionment or distribution of assets of the spouses in divorce proceedings. Section 7(1) of the Act provides that the court may make an order with regard to the division, apportionment or distribution of "the assets of spouses including an order that any asset be transferred from one spouse to the other"
>
> The rights claimed by spouses under section 7(1) of the Act are dependent upon the exercise by the court of the broad discretion.
> The terms used are the "assets of the spouses "and not "matrimonial property"
> It is important to bear in mind the concept used, because the adoption of the concept "matrimonial property" often leads to the erroneous view that assets acquired by one
> spouse before marriage or when the parties are separated should be excluded from the division, apportionment or distribution exercise.
> The concept "the assets of the spouses" is clearly intended to have assets owned by the spouses individually (his or hers) or jointly (theirs) at the time of the dissolution of marriage by the court considered when an order is made with regard to the division, apportionment or distribution of such assets."

In *casu*, the undisputed evidence is that Defendant bought the Bloomingdale property before she got married to plaintiff. She purchased the property through a mortgage that she obtained from her then employer CBZ Bank. She serviced the loan through deductions from her salary. She paid off the loan in 2020. Plaintiff did not contribute directly to the repayment of the loan.

Following the principle enunciated in Gonye case (supra) (his/hers, theirs) this property is hers as it was acquired before marriage. Also following the Gonye case, the property is not excluded from division, apportionment or distribution.

The only issue that arises is what proportion is plaintiff entitled to. From the evidence placed before me, plaintiff did not make any financial contributions towards the repayment of the loan. This is common cause. Plaintiff testified that he made direct and indirect contributions towards the upkeep of the family while defendant was servicing the loan. Plaintiff is claiming 50% share of the property. He admitted though that by the time the two got married, defendant had serviced the loan for some time. Evidence was also produced which shows that Defendant's relatives took over the repayment of the loan and paid it up when Defendant relocated to South Africa after she had resigned from her employment. Plaintiff produced evidence showing

remittances he made to defendant through Mukuru remittances. These however were not constant but sporadic as he went for some months without remitting any money to Defendant at the time she was living in Zimbabwe. Meanwhile the loan was being deducted on a monthly basis. Defendant however admitted that Plaintiff bought baby preparation for the children when they were born.

Can these indirect contributions by Plaintiff towards the upkeep of the family during the loan period warrant that Plaintiff be awarded 50% share of the Bloomingdale property? Certainly not in my view. Considering that the Plaintiff did not make any direct but very minimal indirect contribution towards the upkeep of the family and also the fact that Defendant is not claiming any share of the matrimonial home in Pretoria South Africa, it is only just in my view that Defendant be awarded 100% share of the Bloomingdale property and the claims by Plaintiff be dismissed.

Section 81 of the Zimbabwe Constitution Number 20 of 2013 provides for the Rights of children. It provides as follows: -

> "(1) Every child, that is to say every boy and girl under the age of eighteen years, has the right-
> (a)……..
> (b)……
> (c)……..
> (d) to family or parental care, or to appropriate care when removed from the family environment;
> (e)……
> (f) to education, health care services, nutrition and shelter;
> (g)……
> (h)……..
> (i)……..
>
> (2) A child's best interests are paramount in every matter concerning the child.
> (3) Children are entitled to adequate protection by the courts, in particular by the High Court as their upper guardian"

In determining the issue of custody of the children, I am guided by the provisions of the above section. I am also guided by the remarks echoed in the case of *Sadiqi* v *Muteswa* HH249/20. ZHOU J (as he then was) had this to say at page 8 of the cyclostyled judgement.

> ''The best interests of the child requires this court as the upper guardian of all minor children to exercise its authority by giving priority to the interests of the child over the rights, interest and entitlement of the parents.
> In the case of *Fletcher* v *Fletcher* 1948(1) S A 130 long before the advent of democratic institutions in both South Africa and Zimbabwe the appellate division held that most important consideration in matters of custody and access (and necessarily guardianship) is not

the rights of the parents but the best interests of the child"

It is not in dispute that the Parties' children have settled well in South Africa. They hold Permanent Residence Permits. They are enrolled at a good school. They have established friends both at school and within the complex where they are resident. They have been living and being taken care of by Plaintiff who pays for their education, medical health and provides good shelter for them.

After the divorce, defendant according to her testimony, has to move out of the matrimonial house and look for accommodation elsewhere. She indicated that she will look for accommodation within the school vicinity and where they currently reside so that the children are near the school and their father so that they maintain their bond. In my view it will not be in the best interests of the children to be uprooted from their current home to another place which at the moment has not been secured yet. Further, Defendant has yet to apply for work permit and resident permit for her to remain and work in South Africa as the current Permanent Resident Permit will be invalid upon the granting of the decree of divorce. In that regard, uprooting the children from South Africa where they are already well established and relocate them to Zimbabwe will not secure the best interests of the children.

It is on the basis of the above that Plaintiff be granted custody of the children and defendant be awarded access rights to them.

According to his testimony Plaintiff has been responsible for the day to day care of the children, bearing all financial obligations. Defendant chipping in terms of groceries very minimally. I find it unnecessary to make an order for maintenance as claimed by Plaintiff. Defendant can continue chipping in as she wishes. The claim for maintenance by Plaintiff is therefore denied.

As regards access, Defendant is granted access rights to the children on these terms to wit, second half of the school holidays, every alternate weekend in a month during school days that is from Friday 2pm after school to Sunday 6pm.

In the result the following order is issued:-

(1) that a decree of divorce be and is hereby granted.

(2) Defendant be and is hereby awarded 100% share of house number 6141 Bloomingdale Mabelreign Harare as her sole and exclusive property.

(3) Plaintiff be and is hereby granted custody of the two minor children Jeremy Lebohang Mhike born on 4 September 2013 and Gabriella Thandeka Mhike born on 31 May 2016.

(4) Defendant be and is hereby granted access rights to the children and exercise these rights as follows:-during the second half of every school holiday and every alternate weekend in a month during school days that is from Friday 2pm after school to Sunday 6pm.

(5) Plaintiff's claim for maintenance be and is hereby dismissed

(6) Each party shall bear his /her own costs.

MHURI J:……

Makuwaza and *Gwamanda, Attorneys*, Plaintiff's Legal Practitioners
Takaindisa law chambers, Defendants Legal Practitioners